

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 11, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Richard Johnson, Pete Laybourn, Dr. Mark Rinne (via Zoom), Scott Roybal, Tom Segrave and Jeff White. Absent: Bryan Cook and Ken Esquibel. Also present: Kylie Soden, Deputy City Clerk. The pledge of allegiance was recited.

Mayor Collins called for a moment of silence for Cliff Abraham, a Transit Department employee, who recently passed away.

PROCLAMATION-Designating October of 2021 as Community Planning Month. Mayor Patrick Collins read the proclamation into the record in its entirety and provided details involving awards that were presented to staff members of the Planning and Development Department for group and individual honors. Charles Bloom, Planning and Development Director, provided congratulatory comments to his staff for their accomplishments. Members of the Governing Body expressed appreciation to staff for their efforts.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. White and Dr. Aldrich, agenda items #25(b) and #25(d) were removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Mr. White, agenda item #27(a) was removed from the consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 27, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a restaurant liquor license application filed with the City Clerk’s Office for Bijou, Inc. d/b/a Capitol Cinema 16, 3410 Concord Rd., Cheyenne, WY 82001. Robert Berger, Capitol Cinema 16, provided details relating to the proposed dispensing and consumption areas which include the Club 21 area, movie auditoriums and dining area. Mr. Berger advised the business plan is to serve single serve malt beverage and wine products only from one of their two proposed dispensing areas and noted staff will be TIPS trained. Appreciation was expressed for Capitol Cinema 16 remaining in business during the pandemic and concern was expressed related to alcohol being allowed in all movie auditoriums. There being no

further comments or input, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Defining the Terms and Conditions of Employment for Sworn Officers of the Cheyenne Police Department for Fiscal Year 2021-2022. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. (#4396)

ORDINANCE –3rd READING – Amending Section 2.76.020(B), Members-Terms-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to postpone to October 25, 2021, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body present with the exception of Mr. Roybal voting “no”.

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AG Agricultural to MR Medium-Density Residential, HR High-Density Residential, MUB Mixed-Use Business Emphasis, and CB Community Business for land located northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney Road. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Tom Cobb, City Engineer, upon inquiry, confirmed the preliminary development drainage alignment has been submitted for reviewed. Motion carried. Voting “yes” – all members of the governing body present. (#4397)

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) to clarify the interpretation of Lots and amend Accessory Building Regulations. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Charles Bloom, Planning and Development Director, reported information will be provided at the next Public Services Committee meeting on October 19th addressing inquiries by members of the governing body. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) modifying the Density Standards of UDC 5.1.5D “Multi-Dwelling Buildings (Apartment)” Lot Types. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Unified Development Code (UDC) to modify the MUR, MUB, and MUE zone districts’ intent, context, and transitions. Dr. Rinne moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –1st READING – Creating a new Section 10.04.110, Amnesty Program, of Chapter 10.04, General Provisions, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to MR Medium-Density Residential for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive – referred to Public Services Committee. (Sponsor – Dr. Rinne)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Whitney Ranch, 4th Filing, a plat of a portion of the southeast quarter of Section 23, Township 14 North, Range 66 West, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney Road). Dr. Rinne move to adopt with the condition that the final plat will not be signed until the development agreement has been approved by the governing body, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#6178)

RESOLUTION – Adopting liquor license general guidelines for the review and evaluation of applications for a retail liquor license available through the City of Cheyenne, and establishing a time frame in which applications may be submitted to the City Clerk. Mr. Roybal moved to adopt, seconded by Mr. White. Mr. Roybal moved to amend by substitute Liquor License General Guidelines dated October 1, 2021, seconded by Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. (#6179)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown District Boundaries for the DDA “Spirits & Spirits” Halloween Pub Crawl to be held on October 23, 2021. Motion (per Consent Agenda) carried. (#6180)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the submission of an application for federal assistance to the Federal Aviation Administration under the American Rescue Plan Act of 2021 to assist in funding costs related to operations, cleaning, sanitization, janitorial services, combating the spread of pathogens at the airport, and debt service payments. Motion (per Consent Agenda) carried. (#6181)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Water Development Commission for grant funding for the Crystal Bypass Pipeline Project in the amount of \$2,546,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving Fund for the Crystal Bypass Pipeline Project in the amount of \$1,254,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located at 2621 Granite Peak Drive to allow installation of on-site sewage holding tanks (septic system) located within the City – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located at 8910 Hutchins Drive to allow installation of on-site sewage holding tanks (septic system) located within the City – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] Agreement between the City of Cheyenne and BMC One, Inc., to provide SIP trunk communication services to the city for cost savings on analog phone circuits used for 911 calls at outlying city offices (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$10,764.00). (#7424)

Purchase and sale agreement between the City of Cheyenne and Jerilou Lockhart to acquire real property (250,470 square feet along Railroad Right of Way East of Raleigh Drive) for expansion of the Greenway (Specific Purpose Sale Tax). Mr. Roybal moved to approve in an amount not to exceed \$240,000.00, seconded by Mr. White. Upon inquiry, Jeanie Vetter, Greenway and Parks Planner, provided information relating to the property acquisition, project funding source, and explained there will be additional acquisitions relating to the project. Charles Bloom, Planning and Development Director, provided additional information involving property zoning. Motion carried. Voting “yes” – all members of the governing body present. (#7425)

[CA] Agreement between the Wyoming Department of Health, Aging Division, to provide support services to persons 60 years or older under the Title III-B Program Grant for Fiscal Year 2021 (Revenue to the city) (III-B Division on Aging Grant). Motion (per Consent Agenda) carried. (#7426)

Professional Services Agreement between the City of Cheyenne and Russel + Mills Studios, Inc., for the East Cheyenne Community Park Master Site Development Plan (Specific Purpose Sale Tax). Mr. Roybal moved to approve in an amount not to exceed \$83,260.00, seconded by Mr. Laybourn. Jeanie Vetter, Greenway and Parks Planner, upon inquiry, provided information on the request for proposal process as regulated by the City’s Purchasing Policy. Ms. Vetter advised Russell + Mills scored the highest of three (3) proposals received. Discussion included estimated project start time of October 2021 and drainage design for underpasses and tunnels. Upon inquiry, Tom Cobb, City Engineer, provided funding information which includes submitting grant applications and advised the preliminary design has been submitted to the Union Pacific Railroad for review. Discussion included: Desire for a public swimming facility on the east side of town, review and remediation of any area drainage issues, and support for completion

of one of City Council's annual goals. Motion carried. Voting "yes" – all members of the governing body present. (#7427)

[CA] Agreement between the City of Cheyenne, Laramie County Sheriff's Office and Laramie County, Wyoming, for housing prisoners at the Laramie County Detention Center (General Fund). Motion (per Consent Agenda) carried. (#7428)

[CA] Human Services Agreement between the City of Cheyenne and United Way of Laramie County to provide services to various community programs (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Wyoming Department of Transportation (WYDOT) for a Wyoming Rural Public Transportation Grant to assist in providing a local match for operating funds for the Transit Program for Fiscal Year 2022 – referred to Finance Committee.

[CA] 2021-2022 Collective Labor Agreement between the City of Cheyenne, Wyoming, and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7287 between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and Benchmark Engineers, PC, Cheyenne, for additional professional services for the Walterscheid Boulevard Reconstruction Plan (MPO Federal Funds) – referred to Finance Committee.

Consideration of Bid #S-2-22 for a contract between the City of Cheyenne and Reiman Corp for the LCCC Greenway Underpass Project (Specific Purpose Sales Tax, WYDOT TAP Grant & WYDOT STPU Grant). Mr. Roybal moved to approve in an amount not to exceed \$1,923,333.40, seconded by Mr. Segrave. Upon inquiry, Tom Cobb, City Engineer, and Jeanie Vetter, Greenway and Parks Planner, provided project information involving funding partnerships and grant opportunities and current and future Greenway connection proposals in the area. Motion carried. Voting "yes" – all members of the governing body present. (#7429)

[CA] Consideration of Bid #S-3-22 for a contract between the City of Cheyenne and Reiman Corp for the Carey Avenue Multi Use Path (Specific Purpose Sales Tax & WYDOT TAP Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$806,008.55). (#7430)

No comments were made on the Voucher Report as presented.

Appointment of Roberta Coates to the Police Civil Service Commission. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Collins who did not vote (mayoral appointment).

Report of Community Facility Fees for Fiscal Year 2020-2021 pursuant to Section 4.2.5 of the Unified Development Code (UDC). Charles Bloom, Planning and Development Director, provided information on the annual report which included the source of fees collected by subdivision/development, disbursement of fees, and balance in fee accounts as of June 30th. Mr.

Bloom noted the total fee collection of \$495,044.00 and expenditures in the amount of \$115,763.00 for fiscal year 2021 leaving a total ending fund balance of \$979,347.00. Comments were made relating to positive efforts in collection of outstanding fees and appreciation was expressed to previous governing bodies for their foresight in creation of the fee process. Mr. Segrave moved to acknowledge receipt of the report, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

Announcement was made of Public Hearing to be held October 25, 2021 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a restaurant liquor license application filed with the City Clerk’s Office for Penstemon Business LLC d/b/a Bella Fuoco, 2115 Warren Ave., Cheyenne, Wyoming.

Under other business:

Mr. White expressed appreciation to Jennifer McClelland, Executive Assistant to the City Council, and members of Information Technology for their efforts involving acquiring and installation of technical equipment in Council Chambers. Mayor Collins echoed Mr. White’s comments and expressed appreciation to Andrew Hays, Civic Center, for his involvement in the process.

Dr. Aldrich expressed appreciation to Sgt. Mark Solberg, Cheyenne Police Department, for his recent presentation involving property crimes in the city.

Dr. Aldrich announced City Council Ward III will be holding a Council and Coffee event on Saturday, October 16th from 9 a.m. to 11 a.m. at Dazbog Coffee (3911 E. Pershing Blvd.).

Mr. Johnson expressed appreciation to fellow council members on their collective efforts in accomplishing many of their goals for this year.

Mr. Laybourn provided comments regarding the Consent Agenda process, the importance of public involvement and his desire to thoroughly provide funding information to the public.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:05 p.m.

Submitted by,

Kylie N. Soden,
Deputy City Clerk, CMC

This notice is available in alternative, accessible formats upon request.

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